SCHEME OF AMALGAMATION

(UNDER SECTIONS 230 TO 232 AND OTHER APPLICABLE PROVISIONS OF THE COMPANIES ACT, 2013)

AMONGST

PIRAMAL CORPORATE TOWER PRIVATE LIMITED
("TRANSFEROR COMPANY 1")

AND

PIRAMAL AGASTYA OFFICES PRIVATE LIMITED
(*FORMERLY KNOWN AS PRL AGASTYA PRIVATE LIMITED*)
("TRANSFEROR COMPANY 2")

AND

DHFL INVESTMENTS LIMITED
("TRANSFEROR COMPANY 3")

AND

PIRAMAL FINANCE LIMITED
(*FORMERLY KNOWN AS PIRAMAL CAPITAL & HOUSING FINANCE LIMITED*)
("TRANSFEREE COMPANY")

THEIR RESPECTIVE SHAREHOLDERS AND CREDITORS

For Piramal Finance Limited
(Formerly known as Piramal Capital & Housing Finance Limited)

Company Secretary

PART A – GENERAL

1. PREAMBLE AND OVERVIEW OF THE SCHEME

1.1. This scheme of amalgamation is presented under Sections 230 to 232 and other applicable provisions of the Act (*as defined hereinafter*) read with Section 2(1B) and other applicable provisions of the IT Act (*as defined hereinafter*), amongst Piramal Corporate Tower Private Limited, Piramal Agastya Offices Private Limited (*formerly known as PRL Agastya Private Limited*), DHFL Investments Limited, Piramal Finance Limited (*formerly known as Piramal Capital & Housing Finance Limited*) and their respective shareholders and creditors.

1.2. The Scheme (*as defined hereinafter*) provides for the following:

(i) the amalgamation of Transferor Company 1 (*as defined hereinafter*) and Transferor Company 2 (*as defined hereinafter*) into the Transferee Company (*as defined hereinafter*) and the dissolution of Transferor Company 1 and Transferor Company 2 without winding up, and the consequent cancellation of the shares held by the Transferee Company in Transferor Company 1 and Transferor Company 2, in accordance with the Scheme;

(ii) the amalgamation of Transferor Company 3 (*as defined hereinafter*) into the Transferee Company and the dissolution of Transferor Company 3 without winding up, and the consequent cancellation of the equity shares and other securities held by the Transferee Company in Transferor Company 3, in accordance with the Scheme;

(iii) various other matters incidental, consequential, or supplementary, as may be necessary to ensure that the amalgamation is fully and effectively carried out or otherwise integrally connected therewith.

2. INTRODUCTION

2.1. PFL (*as defined hereinafter*) was incorporated on 11 April 1984 under the provisions of the Companies Act, 1956, and is a public company within the meaning of the Act, with a corporate identification number L64910MH1984PLC032639. The registered office of PFL is situated at Unit No. 601, 6th Floor, Amiti Building, Agastya Corporate Park, Kamani Junction, Opp. Fire Station, LBS Marg, Kurla (West), Mumbai - 400070, Maharashtra, India. PFL's business comprises: (i) retail lending, (ii) corporate mid-market lending, and (iii) real estate developer lending. PFL is registered with the Reserve Bank of India as a non-deposit taking Non-Banking Finance Company Investment and Credit Company under Section 45-IA of the Reserve Bank of India Act, 1934. The equity shares and non-convertible debentures issued by PFL are listed on the Stock Exchanges (*as defined hereinafter*) and commercial papers issued by PFL are listed on the National Stock Exchange of India limited.

2.2. PCTPL (*as defined hereinafter*) was incorporated on 18 July 2012 under the provisions of the Companies Act, 1956, and is a private limited company within the meaning of the Act, with a corporate identification number U68100MH2012PTC233525. The registered office of PCTPL is situated at 2nd Floor, B Block, Piramal Ananta, Agastya Corporate Park, Kamani Junction, LBS Marg, Opposite Fire Brigade, Kurla (West), Mumbai - 400070, Maharashtra, India. PCTPL is engaged into the business of acquiring, holding, letting out premises along with providing various services and amenities in connection therewith.

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2.3. PAOPL (*as defined hereinafter*) was incorporated on 20 November 2006 under the provisions of the Companies Act, 1956, and is a private limited company within the meaning of the Act, with a corporate identification number U45201MH2006PTC165659. The registered office of PAOPL is situated at Wing A, Amiti Building, Agastya Corporate Park, Kamani Junction, LBS Marg, Opposite Fire Brigade, Kurla (West), Mumbai - 400070, Maharashtra, India. PAOPL engaged in the business of real estate/ real estate development and incidental services as authorised under its object clause of its memorandum of association.

2.4. DIL (*as defined hereinafter*) was incorporated on 13 February 2017 under the provisions of the Act, and is a public company within the meaning of the Act, with a corporate identification number U74999MH2017PLC291108. The registered office of DIL is situated at 601, 6th Floor, Amiti Building, Agastya Corporate Park, Kamani Junction, LBS Marg, Kurla (West), Mumbai, Maharashtra, India, 400070. DIL is engaged in the business of acquiring any kind of shares, stock, debentures stocks and securities in accordance with the Reserve Bank of India Act, 1934 and other applicable statutory and legal provisions.

2.5. The shares of the Transferor Companies are currently not listed on any stock exchanges in India.

2.6. There has been no change in the authorized, issued, subscribed and paid-up share capital of the Transferor Companies since 31 December 2025. The Transferor Companies are the wholly owned subsidiaries of the Transferee Company, and the entire paid-up capital of the Transferor Companies is held by the Transferee Company.

2.7. Further, as on the date of sanction of this Scheme by the respective Boards (*as defined hereinafter*) of the Parties (*as defined hereinafter*), there are no existing commitments, obligations or arrangements on the part of the Transferor Companies to issue any further shares or convertible securities.

3. RATIONALE OF THE SCHEME

The Transferor Companies are the wholly owned subsidiaries of the Transferee Company, and the entire paid-up capital of the Transferor Companies is held by the Transferee Company. The Scheme is proposed as part of the consolidation strategy within the group, aimed at simplifying the group structure and unlocking operational and financial efficiencies across the combined entity. The rationale of the Scheme is as under:

(i) The amalgamation will consolidate the operations and business of the Transferor Companies into the Transferee Company which will result in enhanced operating synergies, improved utilisation, streamlined workflows and operational efficiencies;

(ii) The amalgamation will enable rationalization of costs by eliminating redundancies and achieving simplification of management structure thereby leading to better administration and cost savings;

(iii) The Scheme will result in a streamlined group structure by effecting a reduction in number of legal entities within the group, thereby reducing the compliance burden, regulatory costs, and administrative overhead associated with maintaining separate legal entities;

(iv) The amalgamation is expected to create long-term value for all stakeholders. The Scheme shall be beneficial and in the best interests of the shareholders, creditors and

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employees of the Transferor Companies and the Transferee Company by consolidating resources and strengthening the balance sheet of the Transferee Company; and

(v) The Scheme does not affect the rights and interests of the shareholders of the Transferee Company. Since the Transferor Companies are wholly owned subsidiaries of the Transferee Company, there will be no change in the capital structure of the Transferee Company. Accordingly, the shareholding and other rights of the members of the Transferee Company will remain unaffected.

In view of the above, the respective Boards of the Transferor Companies and the Transferee Company have considered, approved and formulated this Scheme pursuant to the provisions of Sections 230-232 and all other applicable provisions of the Act, with a view to benefiting the stakeholders of the Parties.

4. PARTS OF THE SCHEME

This Scheme is divided into the following parts:

PART A deals with the background of the Transferor Companies and Transferee Company, rationale and benefits of the Scheme;

Part B deals with the definitions, interpretation and share capital structure of the Transferor Companies and Transferee Company;

PART C deals with the amalgamation of Transferor Company 1 and Transferor Company 2 into Transferee Company, in accordance with Sections 230 to 232 and other applicable provisions of the Act and in compliance with Section 2(1B) of the IT Act, and consequent dissolution of the Transferor Company 1 and Transferor Company 2 without winding up;

PART D deals with the amalgamation of Transferor Company 3 into Transferee Company, in accordance with Sections 230 to 232 and other applicable provisions of the Act and in compliance with Section 2(1B) of the IT Act, and consequent dissolution of the Transferor Company 3 without winding up; and

PART E deals with the general terms and conditions applicable to the Scheme.

PART-B

DEFINITIONS, INTERPRETATION, AND SHARE CAPITAL STRUCTURE

1. DEFINITIONS

1.1 **"Act" or "Companies Act"** means the Companies Act, 2013, as amended, read with the Companies (Compromises, Arrangements and Amalgamations) Rules, 2016, as amended, and other applicable rules and regulations, for time being in force, and includes any amendment, alteration, modification, or re-enactment thereof. References to sections of the Act shall be deemed to include references to any corresponding sections enacted in modification or replacement thereof.

1.2 **"Applicable Law(s)"** means (A) all applicable statutes, enactments, acts of legislature or parliament, laws, notification, bye-laws, rules, regulations, guidelines, code, directives, ordinances, schemes, notices, orders, policies or instructions enacted or issued or sanctioned by any Governmental Authority, (B) administrative interpretation, writ, injunction, directions, directives, judgment, arbitral award, decree, orders or approvals of, or agreements with, any Governmental Authority or recognized stock exchange; and (C) international treaties, conventions and protocols, as may be in force from time to time.

1.3 **"Amalgamating Undertaking"** shall mean, in relation to each of the Transferor Companies, the entire business undertaking, assets and liabilities of the relevant Transferor Company as on the Appointed Date, including:

(a) all assets and properties in the books of the relevant Transferor Company;

(b) all debts, liabilities, securities whether short term or long term contingent liabilities or duties and obligations whether recorded or unrecorded in the books of the relevant Transferor Company;

(c) without prejudice to the generality of sub clause (a) above, the undertaking of the relevant Transferor Company shall include all the assets and properties, whether movable or immovable, real or personal, in possession or reversion, corporeal or incorporeal, tangible or intangible, present or contingent and including but not limited to land and building, all fixed and movable plant and machinery, vehicles, fixed assets, capital work in progress, current assets, investments, reserves, provisions, funds, licenses, franchises, registrations, certificates, no-objection certificates, permissions, consents, approvals, concessions (including but not limited to sales tax concessions, excise duty, services tax or customs, value added tax, Goods and Service Tax and other incentives of any nature whatsoever), remissions, remedies, subsidies, guarantees, bonds, copyrights, patents, trade names, trademarks, track record, good-will and other rights and licenses in respect thereof, applications for copyrights, patents, trade names, trademarks, leases, leave and license agreements, software licenses, software agreements, service level agreements, tenancy rights, premises, offices, depots, quotas, ownership flats, hire purchase arrangements, benefits of security arrangements, computers, insurance policies, office equipment, telephones, telexes, facsimile connections, communication facilities, website designing equipment, software development equipment and installations and utilities, right to use and avail electricity connections, water connections, environmental clearances, email, internet, leased line and other service connections and installations, contracts and arrangements,

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powers, authorities, permits, allotments, privileges, liberties, advantages, easements and all the right, title, interest, goodwill, benefit and advantage, deposits, reserves, preliminary expenses, benefit of deferred revenue expenditure, provisions, advances, receivables, deposits, cash, bank balances, accounts and all other rights, benefits of all contracts/agreements/leases (including, but not limited to, contracts / agreements with vendors, customers, Governmental Authority etc.), subsidies, grants, incentives, tax credits, whether granted by any Governmental Authority (including but not limited to credits in respect of income-tax, tax on book profits, value added tax, sales tax, service tax, Goods and Service Tax etc.) and other claims and powers, all books of accounts, documents and records of whatsoever nature and where so ever situated belonging to or in the possession of or granted in favour of or enjoyed by the relevant Transferor Company;

(d) all staff, workman and employees employed by the relevant Transferor Company; and

(e) All records, files, papers, information, computer programs, software applications, manuals, data, catalogues, quotations, advertising materials, lists of present and former customers, pricing information and other records, whether in physical form or electronic form of the Transferor Companies.

1.4 **"Appointed Date"** means 1st April, 2026 or such other date as may be approved by the NCLT at Mumbai or such other competent authority having jurisdiction to sanction the Scheme.

1.5 **"Board of Directors" or "Board"** in regard to a company or a body corporate, means the board of directors of such a company or body corporate as constituted from time to time and, unless repugnant to the subject, context or meaning thereof, includes every committee (including any committee of directors) or any Person authorised by the board of directors of such a company or body corporate or by any such committee.

1.6 "**Effective Date**" means:

(a) in relation to Part-C of the Scheme, the date or the last date as notified by the Boards of the Transferor Company 1, Transferor Company 2 and Transferee Company on which all conditions precedent set forth in Clause 32.1 are fulfilled, completed or waived, as applicable, as determined by the Boards of the Transferor Company 1, Transferor Company 2 and Transferee Company in accordance with the Scheme;

(b) in relation to Part-D of the Scheme, the date or the last date as notified by the Boards of the Transferor Company 3 and Transferee Company, on which all conditions precedent set forth in Clause 32.1 and Clause 32.2 are fulfilled, completed or waived, as applicable, as determined by the Boards of the Transferor Company 3 and Transferee Company in accordance with the Scheme;

References in any Part of this Scheme to the date of "coming into effect of this Scheme" or "effectiveness of this Scheme" or "Scheme taking effect" or "upon the Scheme becoming effective" shall mean the Effective Date in respect of such Part of the Scheme.

1.7 "**EPFO**" means Employees' Provident Fund Organisation.

1.8 "**Governmental Authority**" means any national, state, provincial, local or similar governmental, statutory, regulatory, administrative authority, tax authority, agency,

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commission, departmental or public body or authority, board, branch, tribunal or court or other entity authorized to make laws, rules, regulations, standards, requirements, procedures or to pass directions or orders, in each case having the force of law, or any non-governmental regulatory or administrative authority, body or other organization to the extent that the rules, regulations and standards, requirements, procedures or orders of such authority, body or other organization have the force of law, or any stock exchange in India or any other country including the Registrar of Companies, Regional Director, IRDAI, NCLT, and such other sectoral regulators or authorities as may be applicable.

1.9 **"IRDAI"** means the Insurance Regulatory and Development Authority of India.

1.10 **"Indian Rupees" "INR"** means Indian Rupees, the lawful currency of the Republic of India.

1.11 "**IT Act**" means the Income Tax Act, 1961, as may be amended or supplemented from time to time (and any successor provisions or law), including any statutory modifications or re-enactments thereof together with all applicable by-laws, rules, regulations, orders, ordinances, directions including circulars and notifications and similar legal enactments, in each case issued under the IT Act.

1.12 "**NCLT**" means the National Company Law Tribunal having jurisdiction over the Transferor Companies and the Transferee Company as the case may be, as constituted and authorized as per the provisions of the Act for approving any scheme of arrangement, compromise or reconstruction of companies under Sections 230 to 232 of the Act and shall include, if applicable, such other forum or authority as may be vested with the powers of a tribunal for the purposes of Sections 230 to 232 of the Act as may be applicable.

1.13 "**Parties**" means the Transferor Companies and the Transferee Company, collectively and "**Party**" shall mean each of them, individually.

1.14 **"Person"** means and includes any natural person, limited or unlimited liability company, corporation, limited or unlimited liability partnership firm, proprietorship firm, Hindu undivided family, trust, union, association or Governmental Authority or any other entity that may be treated as a person under Applicable Laws.

1.15 "**Registrar of Companies**" means the Registrar of Companies at Mumbai for the state of Maharashtra.

1.16 "**Scheme of Amalgamation**" or "**Scheme**" or "**the Scheme**" or "**this Scheme**" means this scheme of amalgamation under Sections 230 to 232 and other applicable provisions, if any, of the Act, in its present form, including any modification or amendment hereto, made in accordance with the terms hereof;

1.17 **"Stock Exchanges"** means BSE Limited and the National Stock Exchange of India Limited, collectively.

1.18 "**Taxes**" means any and all forms of taxation, imposts, duties, and levies, whether direct or indirect, deductible at source or otherwise, relating to income, book profits, services profession, wealth, entry, capital gains, municipal, state, federal, sales, value added, excise, import duties, service tax, goods and services taxes, withholding, employment, payroll, stamp duty, social security tax, entry tax, property tax, professional tax together with any cess, interest, penalties, surcharges or fines relating thereto and whether any amount in respect of any of them is

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recoverable from any other Person, whether imposed under Applicable Laws. It is clarified that the term "**Taxes**" shall include any interest, surcharges, cess, penalties or additional taxes payable in connection therewith; Correlative terms such as "**Tax**" and "**Taxation**" shall be construed in accordance with this definition.

1.19 "**Transferor Company 1**" means Piramal Corporate Tower Private Limited, a private limited company within the meaning of the Companies Act, 1956, with a corporate identification number U68100MH2012PTC233525, having its registered office at 2nd Floor, B Block, Piramal Ananta, Agastya Corporate Park, Kamani Junction, LBS Marg, Opposite Fire Brigade, Kurla (West), Mumbai - 400070, Maharashtra, India, hereinafter also referred also as "**PCTPL**".

1.20 "**Transferor Company 2**" means Piramal Agastya Offices Private Limited (*formerly known as PRL Agastya Private Limited*), a private limited company within meaning of the Companies Act, 1956, with a corporate identification number U45201MH2006PTC165659, having its registered office at Wing A, Amiti Building, Agastya Corporate Park, Kamani Junction, LBS Marg, Opposite Fire Brigade, Kurla (West), Mumbai - 400070, Maharashtra, India, hereinafter also referred to as "**PAOPL**".

1.21 "**Transferor Company 3**" means DHFL Investments Limited, a public limited company under the provisions of the Act, with a corporate identification number U74999MH2017PLC291108, having its registered office at 601, 6th Floor, Amiti Building, Agastya Corporate Park, Kamani Junction, LBS Marg, Kurla (West), Mumbai, Maharashtra, India, 400070, hereinafter also referred to as "**DIL**".

1.22 "**Transferor Companies**" means collectively, Piramal Corporate Tower Private Limited, Piramal Agastya Offices Private Limited and DHFL Investments Limited, and each of them is hereinafter individually referred to as a "**Transferor Company**".

1.23 "**Transferee Company**" means Piramal Finance Limited (*formerly known as Piramal Capital & Housing Finance Limited*), a public limited company within the meaning of the Act, with a corporate identification number U64910MH1984PLC032639, having its registered office at 601, 6th Floor, Amiti Building, Agastya Corporate Park Kamani Junction, Opp. Fire Station, LBS Marg, Kurla (West), Mumbai – 400070, hereinafter also referred to as "**PFL**".

1.24 "**Transferring Contracts**" means all contracts, indenture, agreements, legally binding arrangements, insurance contracts obtained, insurance policies obtained, agreements, purchase orders/service orders, distribution agreements, agreements with insurance brokers, contracts with reinsurance providers, corporate agency agreements, web aggregator agreements, agreements with third party administrators, agreements with or in relation to hospitals/clinics/healthcare providers, agreements with motor service providers, agreements for roadside assistance, agreements with surveyors, lawyers and claim investigators, technology license agreements, operation and maintenance contracts, forms, memoranda of understanding, memoranda of undertakings, memoranda of agreements, memoranda of agreed points, bids, tenders, expression of interest, letters of intent, hire and purchase arrangements, lease/license agreements, tenancy rights, agreements/ panchnamas for right of way, equipment purchase agreements, agreements with customers, purchase and other agreements with the supplier/ manufacturer of goods/ service providers, other arrangements, undertakings, deeds, bonds, schemes, privileges, entitlements, grants, sanctions, permissions, consents, approvals, concessions, any schemes under which the relevant Transferor Company is registered with any Governmental Authority, incentives (including but not limited to benefits under the IT Act,

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service tax, Goods and Service Tax and other laws), remissions, remedies, subsidies, licenses, benefits, engagements, certificates, insurance covers obtained and claims made thereon, clearances and other instruments of whatsoever nature and description, whether written, oral or otherwise and all rights, title, interests, claims and benefits thereunder pertaining to the business of the relevant Transferor Company which shall be transferred to the Transferee Company pursuant to this Scheme.

1.25 "**Transferring Employees**" means all employees, probationers, permanent employees, temporary employees, trainees and other persons employed on the payroll of each of Transferor Company 1, Transferor Company 2 and Transferor Company 3, as separate and distinct employee pools, whose employment shall be transferred to the Transferee Company pursuant to this Scheme.

1.26 "**Transferring Litigations**" means all legal, Tax or other proceedings, claims, notices, demands and obligations of whatsoever nature and whether known or unknown, contingent or otherwise, present or future relating to the business of the relevant Transferor Company which shall be transferred to the Transferee Company pursuant to this Scheme.

2. INTERPRETATION

(a) References to a person include any individual, firm, body corporate (whether incorporated), government, state or agency of a state or any joint venture, association, partnership, works council or body of employees' representatives (whether or not having separate legal personality).

(b) References to clauses and recitals, unless otherwise provided, are to clauses and recitals of and to this Scheme.

(c) Headings, sub-headings, titles, subtitles to clauses, sections and paragraphs are only for information only and shall not form part of the operative provisions of the Scheme and shall not affect the construction or interpretation of this Scheme.

(d) One gender includes all genders and references to the singular include the plural and vice versa and reference to any gender includes a reference to other genders; references to "it" shall be deemed to include references to "him or her as the case may be".

(e) Any phrase introduced by the terms "including", "include", "in particular" or any similar expression shall be construed as illustrative and shall not limit the sense of the words preceding those terms.

(f) The words "other", "or otherwise" and "whatsoever" shall not be construed *ejusdem generis* or be construed as any limitation upon the generality of any preceding words or matters specifically referred to.

(g) Reference to "writing" or "written" includes printing, typing, lithography and other means of reproducing words in a visible form including e-mail.

(h) Reference to any agreement, contract, document or arrangement or to any provision thereof shall include references to any such agreement, contract, document or arrangement as it may, after the date hereof, from time to time, be amended, supplemented or novated.

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(i) Reference to any legislation, statute, regulation, rule, notification or any other provision of law means and includes references to such legal provisions as amended, supplemented or re-enacted from time to time, and any reference to a legal provision shall include any subordinate legislation made from time to time under such a statutory provision.

(j) All terms and words not defined in this Scheme shall, unless repugnant or contrary to the context or meaning thereof, have the same meaning ascribe to them under the Act, the IT Act or any other applicable laws, rules, regulations, bye laws, as the case may be, including any statutory modification or re-enactment thereof from time to time.

(k) Unless otherwise defined, the reference to the word days, months and years are references to calendar days, calendar months and calendar years, respectively.

(l) References to dates and times shall be construed to be references to Indian dates and times and if such date falls on a public holiday, then it will be immediately preceding day.

(m) If a period of time is specified as from a given day, or from the day of an act or event, it shall be calculated exclusive of that day.

(n) A reference to a balance sheet or profit and loss account shall include a reference to any note forming part of it.

3. EFFECTIVE DATE AND OPERATIVE DATE

3.1. The Scheme set out therein in its present form or with any modification (s) approved or imposed or directed by the NCLT, shall become effective from the Appointed Date but shall be operative from the Effective Date. Therefore, for all tax purposes, the Scheme would be effective from the Appointed Date.

4. SHARE CAPITAL

4.1. The authorized, issued, subscribed and paid-up capital of the Transferee Company as on 31st December 2025, is as follows:

Share Capital	Amount (in INR)
Authorized Share Capital	
1,46,49,69,50,120 equity shares of INR 2 each	2,92,99,39,00,240
19,25,00,000 Non-Convertible Redeemable Cumulative Preference Shares of INR 100 each	19,25,00,00,000
10,50,00,000 unclassified shares of INR 2 each	21,00,00,000
TOTAL	**3,12,45,39,00,240**
Issued, Subscribed and Paid-Up Share Capital	
22,66,77,700 equity shares of INR 2 each	45,33,55,400
TOTAL	**45,33,55,400**



4.2. The authorized, issued, subscribed and paid-up capital of the Transferor Company 1 as on 31st December, 2025 is as follows:

Share Capital	Amount in INR
Authorized Capital	
20,00,00,000 equity shares of INR 10 each	2,00,00,00,000
Total	**2,00,00,00,000**
Issued, Subscribed and Paid-up Capital	
19,96,14,079 equity shares of INR 10/- each	1,99,61,40,790
Total	**1,99,61,40,790**

4.3. The authorized, issued, subscribed and paid-up capital of the Transferor Company 2 as on 31st December, 2025 is as follows:

Share Capital	Amount in INR
Authorized Capital	
7,70,00,000 equity shares of INR 10 each	77,00,00,000
2,30,00,000 non-cumulative compulsory convertible preference shares of INR 10 each	23,00,00,000
Total	**100,00,00,000**
Issued, Subscribed and Paid-up Capital	
3,24,90,000 equity shares of INR 10/- each	32,49,00,000
2,30,00,000 non-cumulative compulsory convertible preference shares of INR 10 each	23,00,00,000
Total	**55,49,00,000**

4.4. The authorized, issued, subscribed and paid-up capital of the Transferor Company 3 as on 31st December, 2025 is as follows:

Share Capital	Amount in INR
Authorized Capital	
12,00,00,000 equity shares of INR 10/- each	1,20,00,00,000
Total	**1,20,00,00,000**
Issued, Subscribed and Paid-up Capital	
10,15,50,000 equity shares of INR 10/- each	1,01,55,00,000
Total	**1,01,55,00,000**

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PART-C

AMALGAMATION OF TRANSFEROR COMPANY 1 AND TRANSFEROR COMPANY 2 INTO TRANSFEREE COMPANY

5. TRANSFER AND VESTING OF AMALGAMATING UNDERTAKING

5.1. Upon the coming into effect of this Scheme and with effect from the Appointed Date, the Transferor Company 1 and Transferor Company 2 shall stand amalgamated into the Transferee Company and their respective Amalgamating Undertakings shall, in accordance with Section 2(1B) of the IT Act and Sections 230 to 232 and other applicable provisions, if any, of the Act, without any further act, instrument, deed, matter or thing, stand transferred to and vested in or be deemed to be transferred to and vested in the Transferee Company as a going concern so as to become the undertaking of the Transferee Company in the manner provided in the Scheme.

5.2. Without prejudice to the generality of Clause 5.1 and upon the Scheme becoming effective:

(a) The Amalgamating Undertaking of each of the Transferor Company 1 and Transferor Company 2, comprising the business, assets and liabilities of the relevant Transferor Company of whatsoever nature and where-so-ever situated shall, pursuant to the provisions of Sections 230 to 232 and all other applicable provisions, if any, of the Act, without any further act, instrument or deed be and stand transferred to and vested in the Transferee Company and/or be deemed to be transferred to and vested in the Transferee Company as a going concern so as to become the undertaking of the Transferee Company. Upon such transfer and vesting, all the rights, title, interest or obligations of each of the Transferor Company 1 and Transferor Company 2 in relation to its respective Amalgamating Undertaking, shall stand transferred to and vest in the Transferee Company. For purposes of taking on record the name of the Transferee Company in the records of the Governmental Authorities in respect of transfer of assets and liabilities to the Transferee Company pursuant to this Scheme, the respective Boards of the Parties shall approve the execution of such documents, filings, deeds and registration with Governmental Authority as may be necessary.

(b) Without prejudice to the provisions of Clause 5.2(a), all the immovable assets and properties of each of the Transferor Company 1 and Transferor Company 2, including rights, interests and easements in relation thereto, shall, under the provisions of Section 230 to232 of the Companies Act, without any further act or deed or conveyance being required to be done or executed by the Transferee Company, be transferred to or be deemed to be transferred to the Transferee Company so as to become as from the Appointed Date the properties of the Transferee Company.

(c) Without prejudice to the provisions of Clause 5.2(a), all the movable assets (including but not limited to computers and equipment, office equipment, machineries, softwares, products, websites, portals, capital work in progress, cash in hand) of each of the Transferor Company 1 and Transferor Company 2 capable of passing by manual delivery or by endorsement and delivery shall, be so delivered or endorsed and delivered, as the case may be, in accordance with Applicable Law, to the Transferee Company and shall become the property of the Transferee Company in pursuance of the provisions of Section 232 of the Act, without requiring any deed or instrument of conveyance for transfer of the same. Upon this Scheme becoming effective, the title of

such property shall be deemed to have been mutated and recognized as that of the Transferee Company, absolutely and forever.

(d) In respect of movables other than those specified in sub clause (c) above, including, outstanding loans and advances, investments (whether current or non-current), trade receivables, recoverable in cash or in kind or for value to be received, bank balances and deposits, if any, with government, semi-government, local and other authorities and bodies, customers and other persons, the same shall, without any further act, instrument or deed, be transferred to and stand vested in and for be deemed to be transferred to and stand vested in the Transferee Company under the provisions of Section 230-232 of the Companies Act and appropriate entries should be passed in their respective books to record such change, without any notice or other intimation to such debtors. Provided that the Transferee Company may itself, at its sole discretion, at any time after coming into effect of this Scheme in accordance with the provisions hereof or if so required under any Applicable Law, give notices in such form as it may deem fit and proper, to each person, as the case may be, informing them that that pursuant to the Scheme becoming effective, such receivable, advance or deposit shall stand transferred and vested in the Transferee Company and be paid or made good or held on account of the Transferee Company as the person entitled thereto.

(e) All assets of Transferor Company 1 and Transferor Company 2 which are acquired on or after the Appointed Date till the Effective Date, in relation to and forming part of their respective businesses (whether or not reflected in their respective books of accounts), shall be deemed to be and shall become the assets of the Transferee Company by virtue of and in the manner provided in this Scheme and shall, pursuant to the provisions of Sections 230 to 232 and all other applicable provisions of the Act, if any, without any further act or deed, be and stand transferred to and vested in the Transferee Company or be deemed to be transferred to and vested in the Transferee Company.

(f) In relation to all licenses, franchises, permissions, approvals, consents, entitlements, sanctions, permits, rights, privileges and licenses including rights arising from contracts, deeds, license instruments and agreements, if any, belonging to the Transferor Company 1 and Transferor Company 2, which require separate documents of transfer including documents for attornment or endorsement, as the case may be, the Transferee Company will execute the necessary documents of transfer including documents for attornment or endorsement, as the case maybe, as and when required.

(g) All debts, liabilities, duties and obligations of every kind, nature and description of each of Transferor Company 1 and Transferor Company 2, whether or not provided for in their respective books of account and whether disclosed or undisclosed in their respective balance sheet, as on the Appointed Date (or anytime thereafter), shall without any further act, instrument or deed, stand transferred to and vested in or be deemed to be transferred to and vested in the Transferee Company on the same terms and conditions as applicable to Transferor Company 1 and Transferor Company 2, and shall become as from the Appointed Date the debts, liabilities, duties and obligations of the Transferee Company. It shall not be necessary to obtain the consent of any third party or other person who is a party to any contract or arrangement by virtue of which such secured and/or unsecured debts, liabilities, duties and obligations have arisen, in order to give effect to the provisions of this sub clause. The provisions of this Clause

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5.2(g) shall operate, notwithstanding anything to the contrary contained in any agreement, instrument, deed or writing to which the relevant debt relates to or the terms of sanction or issue or any security document, all of which instruments, deeds or writings shall stand modified by the foregoing provisions. It is also clarified that any discharge or settlement of such debts, liabilities, duties or obligations by Transferor Company 1 and/or Transferor Company 2 after the Appointed Date and prior to the Effective Date shall be deemed to have been made for and on account of the Transferee Company.

(h) Without prejudice to the provisions of Clause 5.2(g), the Parties shall execute any instrument(s) and/ or document(s) and/ or do all the acts and deeds as may be required, including the filing of necessary particulars and/ or modification(s) of charge, with the Registrar of Companies to give formal effect to the above provisions, if required.

(i) All approvals and other consents, permissions, incentives, grants, subsidies, quotas, special status, rights, authorizations, entitlements, no-objection certificates and licenses, including those relating to tenancies, privileges (including privileges in relation to credit on account of tax on book profits, sales tax, excise duty, custom duty, service tax, value added tax and other incentives), powers and facilities of every kind and description whatsoever, granted by any Governmental Authority to, or held or availed of by, each of Transferor Company 1 and Transferor Company 2, or to which they are parties or otherwise entitled, and which are subsisting or in effect immediately prior to the Effective Date and required for carrying on their respective businesses, shall, without any further act, instrument or deed, continue to remain in full force and effect and shall stand transferred to and vested in the Transferee Company.

5.3. The Transferee Company shall under the provisions of the Scheme be deemed to be authorized to execute any such writings on behalf of the Transferor Company 1 and Transferor Company 2, to implement and carry out all formalities and compliances, if required, referred to above.

5.4. All properties or assets of each of the Transferor Company 1 and Transferor Company 2, whether movable or immovable, being transferred pursuant to this Scheme, which are registered and standing in the name of Transferor Company 1 and Transferor Company 2 shall, upon the Scheme becoming effective, be registered in the name of the Transferee Company and the name of such Transferor Company 1 and Transferor Company 2 shall be substituted with the name of the Transferee Company in all such certificates of registration, endorsements, records and in revenue/mutation records in case of immovable properties by the relevant Governmental Authorities.

5.5. Any Tax liabilities under the IT Act, service tax laws, customs law, Goods and Service Tax or other Applicable Laws dealing with Taxes of each of the Transferor Company 1 and Transferor Company 2 to the extent not provided for or covered by tax provision in the accounts made as on the date immediately preceding the Appointed Date, if any, shall be transferred to Transferee Company.

5.6. Any refund under the IT Act, service tax laws, Goods and Service Tax or other Applicable Laws dealing with Taxes due to Transferor Company 1 and Transferor Company 2 consequent to the assessment made on such Transferor Company 1 and Transferor Company 2 and for which no credit is taken in the accounts as on the date immediately preceding the Appointed Date shall also belong to and be received by Transferee Company.



5.7. On or after the Effective Date, all rights, entitlements and powers to revise returns and filings of each of the Transferor Company 1 and Transferor Company 2 under IT Act, service tax laws, Goods and Service Tax and other laws, and to claim refunds and / or credits for Taxes paid, etc. and for matters incidental thereto, shall be transferred to, and vest with the Transferee Company.

5.8. All Tax assessment proceedings / appeals of whatsoever nature by or against the Transferor Company 1 and Transferor Company 2 pending and/or arising at the Appointed Date and relating to the Transferor Company 1 and Transferor Company 2 shall be continued and / or enforced until the Effective Date against the Transferor Company 1 and Transferor Company 2 and from the Effective Date, the same shall be continued and enforced by or against the Transferee Company in the same manner and to the same extent as would or might have been continued and enforced by or against the Transferor Company 1 and Transferor Company 2.

5.9. Further, the aforementioned proceedings shall not abate or be discontinued nor be in any way prejudicially affected by reason of the amalgamation of the Transferor Company 1 and Transferor Company 2 into the Transferee Company or anything contained in the Scheme.

5.10. All Tax payments (including, without limitation payments under the IT Act, Service Tax laws, Goods and Service Tax and other laws) whether by way of deduction at source, advance tax or otherwise howsoever, by the Transferor Company 1 and Transferor Company 2 in respect of the profits or activities or operation of the business after the Appointed Date, the same shall be deemed to be the corresponding item paid by the Transferee Company and shall, in all proceedings, be dealt with accordingly. Further, any tax deducted at source by the Transferor Company 1 and Transferor Company 2 on transactions with the Transferee Company, if any, (from Appointed Date till Effective Date) shall be deemed to be advance taxes paid by the Transferee Company and shall, in all proceedings be dealt with accordingly.

5.11. Obligation for deduction of tax at source on any payment made by or to be made by the Transferor Company 1 and Transferor Company 2 under the IT Act, service tax laws, Goods and Service Tax or other Applicable Laws dealing with Taxes shall be made or deemed to have been made and duly complied with by the Transferee Company.

5.12. This Scheme has been drawn up to comply with the conditions relating to "Amalgamation" as specified under Section 2(1B) of the IT Act. If any terms or provisions of the Scheme are found or interpreted to be inconsistent with the provisions of the said Section at a later date including resulting from a retrospective amendment of law or for any other reason whatsoever, till the time the Scheme becomes effective, the provisions of the said section of the IT Act, shall prevail and the Scheme shall stand modified to the extent determined necessary to comply with Section 2(1B) of the IT Act.

6. LEGAL PROCEEDINGS

6.1. Upon the Scheme becoming effective, Transferring Litigations by or against the Transferor Company 1 or Transferor Company 2, pending and/or arising on the Appointed Date, shall be continued, prosecuted and enforced by or against the Transferee Company as effectually and in the same manner and to the same extent as it would have been continued, prosecuted and enforced by or against the Transferor Company 1 or Transferor Company 2 (as the case may be). On and from the Effective Date, the Transferee Company shall, if required, initiate any legal proceedings in relation to the Transferor Company 1 or Transferor Company 2, as the case may be, in the same manner and to the same extent as it would or might have been initiated by the relevant Transferor Company.

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6.2. After the Appointed Date, if any proceedings are taken against the Transferor Company 1 and Transferor Company 2 the same shall be defended by and at the cost of the Transferee Company.

6.3. The Transferee Company (a) shall be substituted or added, as may be required, as a party to all Transferring Litigations referred to in Clause 6.1 above, and (b) shall prosecute, defend or enforce such proceedings, as the case may be, in place of Transferor Company 1 or Transferor Company 2, as applicable. Each of the parties shall be entitled to make such applications in this regard as may be necessary.

6.4. All regulatory or other proceedings of like nature or cause of actions against the Transferor Company 1 or Transferor Company 2 pending and/ or arising before, on, or after, the Appointed Date shall not abate or be discontinued or be in any way prejudicially affects by reason of anything contained in this Scheme but shall be initiated, continued and enforced by or against the Transferee Company in the manner and to same extent as would or might have been initiated, continued and enforced against the relevant Transferor Company without any further act, instrument, deed, matter or thing being made, done or executed. The Transferee Company will have all such regulatory or other proceedings initiated by or against the relevant Transferor Company referred to in this Clause 6.4, transferred in its name and to have the same continued, prosecuted and enforced by or against the Transferee Company, to the exclusion of the relevant Transferor Company.

7. CONTRACTS, DEEDS AND OTHER INSTRUMENTS

7.1. Subject to the other provisions of this Scheme and notwithstanding anything to the contrary contained in any Transferring Contracts, all Transferring Contracts which have not lapsed and are subsisting or having effect on the Effective Date shall continue in full force and effect, and all rights and obligations stipulated therein (except as otherwise agreed) shall be for the benefit of the Transferee Company, and may be enforced effectively by or against the Transferee Company as fully and effectually as if, instead of the Transferor Company 1 and Transferor Company 2, the Transferee Company had been a party thereto from inception. The absence of any formal amendment which may be required by a third party to effect such transfer and vesting shall not affect the operation of the foregoing sentence.

7.2. Without prejudice to the provisions of Clause 7.1, the Transferee Company shall be entitled to enter into and/or issue and/or execute deeds, writings or confirmations or enter into any tripartite agreements, confirmations or novation, to which the Transferor Company 1 and Transferor Company 2 will, if necessary, also be a party in order to give formal effect to the provisions of this Scheme, if so required or if considered necessary.

7.3. The Transferee Company shall, at any time after this Scheme coming into effect, in accordance with the provisions hereof, if so required under any Applicable Law or otherwise, be entitled to execute appropriate deeds of confirmation or other writings or arrangements with any party to any contract or arrangement in relation to which a Transferor Company has been a party, including any filings with the relevant Governmental Authorities, in order to give formal effect to the above provisions.

8. SAVING OF CONCLUDED TRANSACTIONS

8.1. Subject to the terms of this Scheme, the transfer and vesting of the Transferor Company 1 and Transferor Company 2 into the Transferee Company shall not affect any transactions and proceedings or contracts or deeds already concluded by the Transferor Company 1 or Transferor

Company 2, as the case may be, for and on behalf of the Transferee Company until the Effective Date, to the end and intent that the Transferee Company accepts and adopts all such acts, deeds and things done and executed by the Transferor Company 1 or Transferor Company 2, as applicable, for and on behalf of the Transferee Company in relation thereto as acts, deeds, and things done and executed on behalf of the Transferee Company.

9. EMPLOYEES

9.1. Upon the Scheme coming into effect, all Transferring Employees relating to Transferor Company 1 and Transferor Company 2 shall be deemed to have become the employees of the Transferee Company with effect from the Appointed Date without any interruption of, or break in, service as a result of the transfer to the Transferee Company, and the terms and conditions of their employment with the Transferee Company shall not be less favourable than those on which they are engaged by the Transferor Company 1 and Transferor Company 2 (as the case may be).

9.2. The Transferee Company agrees that for the purpose of payment of any compensation, retrenchment compensation, gratuity and other terminal benefits, if any applicable or required, the past services of the Transferring Employees shall also be taken into account, and the Transferee Company shall pay the same as and when payable.

9.3. All on-going leave balances, leave encashments, deferred cash benefits and such other dues of the Transferring Employees shall stand transferred to the Transferee Company and the Transferring Employees shall be treated as in continuous employment in terms of Clause 9.1.

9.4. Upon this Scheme becoming effective, all contributions to funds and schemes in respect of provident fund (including contributions made to or deposited with the appropriate office of the EPFO maintained by the appropriate Regional Provident Fund Commissioner), employee state insurance contribution, gratuity fund, superannuation fund, staff welfare scheme or any other special schemes or benefits created or existing for the benefit of the Transferring Employees shall be made by the Transferee Company in accordance with the provisions of such schemes or funds and Applicable Law. Subject to Applicable Law, the existing provident fund (including contributions made to or deposited with the appropriate office of the EPFO maintained by the appropriate Regional Provident Fund Commissioner), employee state insurance contribution, gratuity fund, superannuation fund, the staff welfare scheme and any other schemes or benefits created for the Transferring Employees ("**Funds**") shall be continued on the same terms and conditions and will be transferred to the existing provident fund (including those with the appropriate office of the EPFO maintained by the appropriate Regional Provident Fund Commissioner as applicable), employee state insurance contribution, gratuity fund, superannuation fund, staff welfare scheme, etc., being maintained by or as may be created by the Transferee Company without any separate act or deed/ approval. In the event the Transferee Company does not have its own funds in respect of any of the above, the Transferee Company may, subject to necessary approvals and permissions, continue to contribute to the Funds, until such time that the Transferee Company creates its own funds and the investments and contributions pertaining to the Transferring Employees shall be transferred to the funds created by the Transferee Company.

9.5. Further to the transfer of Funds as set out in Clause 9.4, for all purposes whatsoever in relation to the administration or operation of such Funds or in relation to the obligation to make contributions to the Funds in accordance with the provisions thereof as per the terms provided in the trust deeds, if any, all rights, duties, powers and obligations of the Transferor Company

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1 and Transferor Company 2 (as the case may be) shall become those of the Transferee Company and all the rights, duties and benefits of the employees of the Transferor Company 1 and Transferor Company 2 under such Funds shall be protected, subject to the provisions of law for the time being in force.

9.6. In relation to any other fund (including any funds set up by the government for employee benefits) created or existing for the benefit of the Transferring Employees, the Transferee Company shall stand substituted in place of Transferor Company 1 or Transferor Company 2, as the case may be, for all purposes whatsoever, including in relation to the obligation to make contributions to such funds in accordance with the provisions of the applicable schemes, fund rules, bye-laws or other governing documents, in respect of such Transferring Employees.

10. INTER-SE TRANSACTIONS

10.1. With effect from the Appointed Date, all inter-party transactions and arrangements (including investments, loans, deposits, advances, transactions, transfers or balances) entered into between the Transferor Company 1 or Transferor Company 2 (on one hand) and Transferee Company (on the other hand), subsisting as on the Effective Date or entered into during the period between the Appointed Date and Effective Date, shall stand cancelled and set-off against each other and neither the relevant Transferor Company nor the Transferee Company shall have any obligation or liability against the other Party in relation thereto.

10.2. Any tax deducted at source by Transferor Company 1, Transferor Company 2, or the Transferee Company on inter-se transactions amongst the Transferor Company 1 and Transferee Company, or between Transferor Company 2 and the Transferee Company, between the Appointed Date and Effective Date shall be deemed to be advance tax paid or tax deposited by the Transferee Company and shall, in all proceedings, be dealt with accordingly in the hands of the Transferee Company (including but not limited to grant of such tax deposited as credit against total tax payable by Transferee Company while filing consolidated return of income on or after Appointed Date). The Transferee Company shall be accordingly entitled to claim refund of tax paid, if any, on these inter-se transactions, as per the Tax laws. Further, any advance tax paid, Tax Deduction/Collection at Source ("**TDS**" or "**TCS**") credits, TDS/TCS certificates received by the Transferor Company 1 or Transferor Company 2 shall be deemed to be the advance tax paid by/TDS/TCS credit of the Transferee Company. Notwithstanding the foregoing, any inter se transactions of supply or receipt of goods and services between the Transferor Company 1 and Transferee Company, or Transferor Company 2 and Transferee Company, between the Appointed Date and Effective Date shall be subject to taxation under the Central Goods and Service Tax Act, 2017, as amended, in accordance with the provisions of Section 87 of the Central Goods and Service Tax Act, 2017. For the avoidance of doubt, input tax credits already availed of or utilized by the Transferor Company 1 or Transferor Company 2 and the Transferee Company in respect of such inter-se transactions of supply or receipt of goods and services between the Appointed Date and the Effective Date shall not be adversely impacted by the foregoing provisions of this clause.

11. CONDUCT OF BUSINESS TILL EFFECTIVE DATE

11.1. With effect from the Appointed Date up to and including the Effective Date:

11.1.1. Transferor Company 1 and Transferor Company 2 shall be deemed to have been carrying on their respective businesses and activities, and shall hold and stand

possessed of the Amalgamating Undertaking, for and on account of and in trust for the Transferee Company;

11.1.2. all income or profits arising or accruing to each of the Transferor Company 1 and Transferor Company 2 and all costs, charges, expenses, taxes paid thereon (including but not limited to advance tax, tax deducted at source, minimum alternate tax, securities transaction tax, taxes withheld/paid in a foreign country, etc.), or losses arising or incurred by each such Transferor Company, shall, for all purposes, be treated as and deemed to be the corresponding profits or income, taxes or losses, as the case may be, of the Transferee Company and shall be available to the Transferee Company for being disposed off in any manner as it thinks fit;

11.1.3. all liabilities, debts, duties, obligations incurred by each of the Transferor Company 1 and Transferor Company 2 after the Appointed Date and prior to the Effective Date shall, subject to the terms of the Scheme, be deemed to have incurred for and on behalf of the Transferee Company and to the extent they are outstanding on the Effective Date, shall also, without any further act or deed be and be deemed to become the debts, liabilities, duties and obligations of the Transferee Company; and

11.1.4. all assets comprised in each of the Transferor Company 1 and Transferor Company 2, whether movable or immovable, tangible or intangible, real or personal, in possession or reversion, which are acquired on or after the Appointed Date till the Effective Date, shall, pursuant to the provisions of Sections 230 to 232 and all other applicable provisions of the Act, without any further act or deed, be and stand transferred to and vested in the Transferee Company, free from all encumbrances, with effect from the Appointed Date.

11.2. Transferor Company 1 and Transferor Company 2 shall carry on their business with reasonable diligence and business prudence and in the same manner as it has been hitherto conducting and shall not alter or substantially expand its business except with the written approval of the Transferee Company.

11.3. The Transferee Company shall be entitled, pending the sanction of the Scheme, to apply to the Governmental Authorities under any Applicable Law for such consents, approvals and sanctions which the Transferee Company may require to carry on the businesses undertaken by the Transferor Company 1 and Transferor Company 2 and to give effect to the Scheme.

11.4. In case the Scheme does not come into effect, the assets and liabilities of Transferor Company 1 shall be re-transferred by the Transferee Company to Transferor Company 1, and the assets and liabilities of Transferor Company 2 shall be re-transferred by the Transferee Company to Transferor Company 2, and for the interim period it shall be deemed that the Transferee Company held and stood possessed of such assets and liabilities for and on account of and in trust for Transferor Company 1 and Transferor Company 2 respectively.

12. NIL CONSIDERATION AND CANCELLATION OF TRANSFEREE COMPANY'S SHAREHOLDING IN TRANSFEROR COMPANY 1 AND TRANSFEROR COMPANY 2

12.1. Since Transferor Company 1 and Transferor Company 2 are wholly-owned subsidiaries of the Transferee Company, no shares of the Transferee Company shall be issued pursuant to the Scheme in respect of the holdings of the Transferee Company in Transferor Company 1 and

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Transferor Company 2. Accordingly, upon the Scheme becoming effective, there shall be no change in the shareholding pattern of the Transferee Company.

12.2. Further, upon the Scheme becoming effective, the entire share capital of Transferor Company 1 and Transferor Company 2 held by Transferee Company, shall stand cancelled and extinguished without any further act, instrument or deed and no separate sanction of the NCLT shall be required in this regard. Further, the investments in the Transferor Company 1 and Transferor Company 2 as appearing on the asset side of the balance sheet of Transferee Company shall also stand cancelled.

13. ACCOUNTING TREATMENT

Notwithstanding anything else contained in the Scheme, the Transferee Company shall account for the amalgamation of the Transferor Company 1 and Transferor Company 2 in accordance with 'Pooling of Interest Method' of accounting as laid down in Appendix C of Indian Accounting Standard (Ind AS) 103 'Business Combinations' prescribed under section 133 of the Companies Act, 2013, read with the Companies (Indian Accounting Standards) Rules, 2015, as may be amended from time to time in the books of accounts such that:

13.1. The Transferee Company shall record all assets (including goodwill) and liabilities, if any, of each of the Transferor Company 1 and Transferor Company 2 vested in it pursuant to the Scheme, at the carrying values as appearing in the consolidated financial statements of the Transferee Company;

13.2. The identity of the reserves of the Transferor Company 1 and Transferor Company 2, shall be preserved and the Transferee Company shall record the reserves of the Transferor Company 1 and Transferor Company 2 in the same form and at the carrying values as appearing in the consolidated financial statements of the Transferee Company;

13.3. The value of all investments held by the Transferee Company in the Transferor Company 1 and Transferor Company 2 shall stand cancelled pursuant to amalgamation and there shall be no further obligation in that behalf;

13.4. Pursuant to the amalgamation of the Transferor Company 1 and Transferor Company 2 with the Transferee Company, the inter-company balances between the Transferor Company 1 and Transferor Company 2 and/or the Transferee Company, if any, appearing in the books of the Transferee Company and/or the Transferor Company 1 and Transferor Company 2 shall stand cancelled and there shall be no further obligation in that behalf;

13.5. The surplus, if any, arising after taking the effect of Clauses 13.1, 13.2, 13.3 and 13.4 shall be transferred to the Capital Reserve in the financial statements of the Transferee Company. The deficit, if any, arising after taking the effect of Clauses 13.1, 13.2, 13.3 and 13.4 shall be adjusted to the Retained Earnings in the financial statements of the Transferee Company;

13.6. In case of any differences in accounting policy between each of the Transferor Company 1 and 2 and the Transferee Company, it shall be adjusted to reserves of the Transferee Company and the accounting policies followed by the Transferee Company will prevail to ensure that the financial statements of the Transferee Company reflect the financial position on the basis of consistent accounting policy;

13.7. Comparative financial information in the financial statements of the Transferee Company shall be restated for the accounting impact of merger, as stated above, as if the merger has occurred from the beginning of the comparative period; and

13.8. Any matter not dealt with in this Clause 13 shall be dealt with in accordance with the requirements of applicable Indian Accounting Standards.

14. DISSOLUTION OF THE TRANSFEROR COMPANY 1 AND TRANSFEROR COMPANY 2

14.1. On the Scheme becoming effective:

14.1.1. the Transferor Company 1 and Transferor Company 2 shall stand dissolved without winding up or without any further deed or act of a similar nature;

14.1.2. the name of the Transferor Company 1 and Transferor Company 2 shall be deemed to be struck off from the records of the Registrar of Companies; and

14.1.3. the Transferee Company shall be entitled to operate all bank accounts of Transferor Company 1 and Transferor Company 2, and realise all monies and complete and enforce all pending contracts and transactions in the name of the Transferor Company 1 and Transferor Company 2 insofar as may be necessary until the transfer and vesting of rights and obligations of the Transferor Company 1 and Transferor Company 2 to the Transferee Company under this Scheme is formally effected by the Parties.

15. AMENDMENT TO THE MEMORANDUM OF ASSOCIATION

15.1. As an integral part of the Scheme, upon the Scheme coming into effect, the memorandum of association of the Transferee Company shall be deemed to be altered and amended, without any further act or deed to, *inter alia*, include the objects as required for carrying on the business activities of Transferor Company 1 and Transferor Company 2.

15.2. The memorandum of association of the Transferee Company shall be altered and amended and the following clause shall be added and inserted in the existing Clause III of the memorandum of association of the Transferee Company, under the heading "Main Objects of the Company to be pursued by the Company":

"*To carry on in India or abroad the business of acquiring, holding, letting out premises (whether constructed or taken on lease), carrying on business of business centre and letting out of the same, providing of various services and amenities along with letting out of property, wholesome leasing builders, developers, infrastructural development contractors, contractors, designers, architects, decorators, consultants, estate agents and property dealers and to purchase, acquire, buy, sell, trade, invest, build, develop, transfer, repair, rebuild, consult, lease, manage, take on lease, any interest in any lands, buildings, property, real or personal estate, TDR or hereditaments of any tenure or description for the purpose of letting on lease in any part of India or abroad and to pulldown, rebuild, enlarge and extend repairs and renovate houses, buildings, land, infrastructure projects, residential, commercial, industrial, any other kind of estates or property of every description for the purpose of letting on lease in any part of India or abroad or other purposes and any rights, easements, advantages and privileges relating thereto and either for investment or resale or trading or for trafficking in the same and to turn the same to account as may seem expedient and in particular by laying out, developing*

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or to assist in developing and preparing sites by planting, paving, draining and by constructing, reconstructing, pulling down, rebuilding, enlarging, extending, altering, improving, decorating, houses, mass housing SRD, buildings, and conveniences or by consolidating or connecting or sub-dividing properties or by leasing, letting or renting, selling by instalments, ownership hire purchase basis or otherwise) and otherwise disposing of the same on any other terms and conditions and to undertake contracts for any type of civil construction works and to create all types of infrastructure facilities including road, darn, checked dam, bridge, airport, runway, railway platform, stations, subway, underground ways, tunnel, helipad economic zones and highways."

15.3. Accordingly, consequential (numbering) changes, if required, shall be made to the clause numbers forming part of Clause III of the memorandum of association of the Transferee Company, without any act, instrument or deed, in terms per Clause 15.2 above, pursuant to Section 13 and other applicable provisions of the Act.

15.4. It is hereby clarified that the consent of the shareholders of the Transferee Company to this Scheme shall be sufficient for the purposes of effecting the aforesaid amendment to the memorandum of association of the Transferee Company and that no further resolutions, whether under Section 13 of the Companies Act, any other applicable provisions of the Companies Act or under the articles of association of the Transferee Company, shall be required to be separately passed, nor shall the Transferee Company be required to pay any additional registration fees, stamp duties, etc. in relation to alteration of the memorandum of association pursuant to this Scheme.

16. APPROVALS

16.1. The Transferee Company shall be entitled, pending the sanction of the Scheme, to apply to any Governmental Authority, if required, under Applicable Law for such consents and approvals which the Transferee Company may require to own the Amalgamating Undertaking and to carry on the business of the Transferor Company 1 and Transferor Company 2.

PART-D

AMALGAMATION OF TRANSFEROR COMPANY 3 INTO TRANSFEREE COMPANY

17. TRANSFER AND VESTING OF AMALGAMATING UNDERTAKING

17.1. Upon the coming into effect of this Scheme and with effect from the Appointed Date, the Transferor Company 3 shall stand amalgamated into the Transferee Company and the Amalgamating Undertaking of Transferor Company 3 shall, in accordance with Section 2(1B) of the IT Act and Sections 230 to 232 of the Act and other applicable provisions, if any, of the Act, without any further act, instrument, deed, matter or thing, stand transferred to and vested in or be deemed to be transferred to and vested in the Transferee Company as a going concern so as to become the undertaking of the Transferee Company in the manner provided in the Scheme.

17.2. Without prejudice to the generality of Clause 17.1 and upon the Scheme becoming effective:

(a) The Amalgamating Undertaking of the Transferor Company 3, comprising the business, assets and liabilities of the Transferor Company 3 of whatsoever nature and where-so-ever situated shall, pursuant to the provisions of Sections 230-232 of the Act and all other applicable provisions, if any, of the Act, without any further act, instrument or deed be and stand transferred to and vested in the Transferee Company or be deemed to be transferred to and vested in the Transferee Company as a going concern so as to become the undertaking of the Transferee Company. Upon such transfer and vesting, all the rights, title, interest or obligations of the Transferor Company 3 in relation to its Amalgamating Undertaking, shall stand transferred to and vest in the Transferee Company. For purposes of taking on record the name of the Transferee Company in the records of the Governmental Authorities in respect of transfer of assets and liabilities to the Transferee Company pursuant to this Scheme, the Boards of the Parties shall approve the execution of such documents, filings, deeds and registration with Governmental Authority as may be necessary.

(b) Without prejudice to the provisions of Clause 17.2(a), all the immovable assets and properties of the Transferor Company 3, including the rights, interests and easements in relation thereto, shall under the provisions of Sections 230-232 of the Companies Act, without any further act or deed or conveyance being required to be done or executed by the Transferee Company, be transferred to or be deemed to be transferred to the Transferee Company so as to become as from the Appointed Date the properties of the Transferee Company.

(c) Without prejudice to the provisions of Clause 17.2(a), all the movable assets (including but not limited to computers and equipment, office equipment, machineries, softwares, products, websites, portals, capital work in progress, cash in hand), of the Transferor Company 3 capable of passing by manual delivery or by endorsement and delivery, shall, be so delivered or endorsed and delivered, as the case may be, in accordance with Applicable Law, to the Transferee Company in pursuance of the provisions of Section 232 of the Act, without requiring any deed or instrument of conveyance for the transfer of the same. Upon this Scheme becoming effective, the title of such property shall be deemed to have been mutated and recognized as that of the Transferee Company, absolutely and forever.

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(d) In respect of movables other than those specified in sub clause (c) above, including, outstanding loans and advances, investments (whether current or non-current), trade receivables, recoverable in cash or in kind or for value to be received, bank balances and deposits, if any, with government, semi-government, local and other authorities and bodies, customers and other persons, the same shall, without any further act, instrument or deed, be transferred to and stand vested in and for be deemed to be transferred to and stand vested in the Transferee Company under the provisions of Section 230-232 of the Companies Act and appropriate entries should be passed in their respective books to record such change, without any notice or other intimation to such debtors. Provided that the Transferee Company may itself, at its sole discretion, at any time after coming into effect of this Scheme in accordance with the provisions hereof or if so required under any Applicable Law, give notices in such form as it may deem fit and proper, to each person, as the case may be, informing them that that pursuant to the Scheme becoming effective, such receivable, advance or deposit shall stand transferred and vested in the Transferee Company and be paid or made good or held on account of the Transferee Company as the person entitled thereto.

(e) All assets of Transferor Company 3, which are acquired on or after the Appointed Date till the Effective Date, in relation to and forming part of the business of Transferor Company 3 (whether or not reflected in the books of accounts), shall be deemed to be and shall become the assets of the Transferee Company by virtue of and in the manner provided in this Scheme and shall, pursuant to the provisions of Sections 230 to 232 and all other applicable provisions of the Act, if any, without any further act or deed, be and stand transferred to and vested in the Transferee Company or be deemed to be transferred to and vested in the Transferee Company.

(f) In relation to all licenses, franchises, permissions, approvals, consents, entitlements, sanctions, permits, rights, privileges and licenses including rights arising from contracts, deeds, license instruments and agreements, if any, belonging to the Transferor Company 3, which require separate documents of transfer including documents for attornment or endorsement, as the case may be, the Transferee Company will execute the necessary documents of transfer including documents for attornment or endorsement, as the case maybe, as and when required.

(g) All debts, liabilities, duties and obligations of every kind, nature and description of Transferor Company 3, whether or not provided for in their books of account and whether disclosed or undisclosed in the balance sheet of the Transferor Company 3 as on the Appointed Date (or anytime thereafter), shall, without any further act, instrument or deed, stand transferred to and vested in or be deemed to be transferred to and vested in the Transferee Company and on the same terms and conditions as applicable to the Transferor Company 3, and shall become as from the Appointed Date, the debts, liabilities, duties and obligations of the Transferee Company. It shall not be necessary to obtain the consent of any third party or other person who is a party to any contract or arrangement by virtue of which such secured and/or unsecured debts, liabilities, duties and obligations have arisen, in order to give effect to the provisions of this sub-clause. The provisions of this Clause 17.2(g) shall operate, notwithstanding anything to the contrary contained in any agreement, instrument, deed or writing to which the relevant debt relates to or the terms of sanction or issue or any security document, all of which instruments, deeds or writings shall stand modified by the foregoing provisions. It is also clarified that any discharge or settlement of such debts, liabilities,

duties or obligations by Transferor Company 3 after the Appointed Date and prior to the Effective Date shall be deemed to have been made for and on account of the Transferee Company.

(h) Without prejudice to the provisions of Clause 17.2(g), the Parties shall execute any instrument(s) and/ or document(s) and/ or do all the acts and deeds as may be required, including the filing of necessary particulars and/ or modification(s) of charge, with the Registrar of Companies to give formal effect to the above provisions, if required.

(i) All approvals and other consents, permissions, incentives, grants, subsidies, quotas, special status rights, authorizations, entitlements, no-objection certificates and licenses, including those relating to tenancies, privileges (including privileges in relation to credit on account of tax on book profits, sales tax, excise duty, custom duty, service tax, value added tax and other incentives), powers and facilities of every kind and description whatsoever, granted by any Governmental Authority to, or held or availed of by, Transferor Company 3 or to which it is a party or otherwise entitled, and which are subsisting or in effect immediately prior to the Effective Date and required for carrying on their respective businesses, shall, without any further act, instrument or deed, continue to remain in full force and effect and shall stand transferred to and vested in the Transferee Company.

17.3. The Transferee Company shall under the provisions of the Scheme be deemed to be authorized to execute any such writings on behalf of the Transferor Company 3, to implement and carry out all formalities and compliances, if required, referred to above.

17.4. All the properties or assets of the Transferor Company 3 whether movable or immovable, being transferred pursuant to this Scheme, which are registered and standing in the name of Transferor Company 3 shall, upon the scheme becoming effective, be registered in the name of the Transferee Company and the name of such Transferor Company 3 shall be substituted with the name of the Transferee Company in all such certificates of registration, endorsements, records and in revenue/mutation records in case of immovable properties by the relevant Governmental Authorities.

17.5. Any Tax liabilities under the IT Act, service tax laws, customs law, Goods and Service Tax or other Applicable Laws dealing with Taxes of the Transferor Company 3 to the extent not provided for or covered by tax provisions in the accounts made as on the date immediately preceding the Appointed Date, if any, shall be transferred to Transferee Company.

17.6. Any refund under the IT Act, service tax laws, Goods and Service Tax or other Applicable Laws dealing with Taxes due to Transferor Company 3 consequent to the assessment made on such Transferor Company 3 and for which no credit is taken in the accounts as on the date immediately preceding the Appointed Date shall also belong to and be received by Transferee Company.

17.7. On or after the Effective Date, all rights, entitlements and powers to revise returns and filings of the Transferor Company 3 under IT Act, service tax laws, Goods and Service Tax and other laws, and to claim refunds and / or credits for Taxes paid, etc. and for matters incidental thereto, shall be transferred to, and vest with the Transferee Company.

17.8. All Tax assessment proceedings / appeals of whatsoever nature by or against the Transferor Company 3 pending and/or arising at the Appointed Date and relating to the Transferor

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Company 3 shall be continued and / or enforced until the Effective Date against the Transferor Company 3 and from the Effective Date, the same shall be continued and enforced by or against the Transferee Company in the same manner and to the same extent as would or might have been continued and enforced by or against the Transferor Company 3.

17.9. Further, the aforementioned proceedings shall not abate or be discontinued nor be in any way prejudicially affected by reason of the amalgamation of the Transferor Company 3 into the Transferee Company or anything contained in the Scheme.

17.10. All the Tax payments (including, without limitation payments under the IT Act, Service Tax law, Goods and Service Tax and other laws) whether by way of deduction at source, advance tax or otherwise howsoever, by the Transferor Company 3 in respect of the profits or activities or operation of the business after the Appointed Date, the same shall be deemed to be the corresponding item paid by the Transferee Company and shall, in all proceedings, be dealt with accordingly. Further, any tax deducted at source by the Transferor Company 3 on transactions with the Transferee Company, if any (from Appointed Date till Effective Date) shall be deemed to be advance taxes paid by the Transferee Company and shall, in all proceedings be dealt with accordingly.

17.11. Obligation for deduction of tax at source on any payment made by or to be made by the Transferor Company 3 under the IT Act, service tax laws, Goods and Service Tax or other Applicable Laws dealing Taxes shall be made or deemed to have been made and duly complied with by the Transferee Company.

17.12. This Scheme has been drawn up to comply with the conditions relating to "Amalgamation" as specified under Section 2(1B) of the IT Act. If any terms or provisions of the Scheme are found or interpreted to be inconsistent with the provisions of the said Section at a later date including resulting from a retrospective amendment of law or for any other reason whatsoever, till the time the Scheme becomes effective, the provisions of the said section of the IT Act, shall prevail and the Scheme shall stand modified to the extent determined necessary to comply with Section 2(1B) of the IT Act.

18. LEGAL PROCEEDINGS

18.1. Upon the Scheme becoming effective, all Transferring Litigations by or against the Transferor Company 3, pending and/or arising on the Appointed Date, shall be continued, prosecuted and enforced by or against the Transferee Company as effectually in the same manner and to the same extent as it would have been continued, prosecuted and enforced by or against the Transferor Company 3. On and from the Effective Date, the Transferee Company shall, if required, initiate any legal proceedings in relation to the Transferor Company 3 in the same manner and to the same extent as it would or might have been initiated by the Transferor Company 3.

18.2. After the Appointed Date, if any proceedings are taken against the Transferor Company 3 the same shall be defended by and at the cost of the Transferee Company.

18.3. The Transferee Company (a) shall be substituted or added, as may be required, as a party to all Transferring Litigations referred to in Clause 18.1 above, and (b) shall prosecute, defend or enforce such proceedings, as the case may be, in place of Transferor Company 3. Each of the parties shall be entitled to make such applications in this regard as may be necessary.

18.4. All regulatory or other proceedings of like nature or cause of actions against the Transferor Company 3 pending and/ or arising before, on, or after, the Appointed Date shall not abate or be discontinued or be in any way prejudicially affects by reason of anything contained in this Scheme but shall be initiated, continued and enforced by or against the Transferee Company in the manner and to same extent as would or might have been initiated, continued and enforced against Transferor Company 3 without any further act, instrument, deed, matter or thing being made, done or executed. The Transferee Company will have all such regulatory or other proceedings initiated by or against the relevant Transferor Company referred to in this Clause 18.4, transferred in its name and to have the same continued, prosecuted and enforced by or against the Transferee Company, to the exclusion of the Transferor Company 3.

19. CONTRACTS, DEEDS AND OTHER INSTRUMENTS

19.1. Subject to the other provisions of this Scheme and notwithstanding anything to the contrary contained in any Transferring Contracts, all Transferring Contracts which have not lapsed and are subsisting or having effect on the Effective Date, shall continue in full force and effect, and all rights and obligations stipulated therein (except as otherwise agreed) shall be for the benefit of the Transferee Company, and may be enforced effectively by or against the Transferee Company as fully and effectually as if, instead of the Transferor Company 3, the Transferee Company had been a party thereto from inception. The absence of any formal amendment which may be required by a third party to effect such transfer and vesting shall not affect the operation of the foregoing sentence.

19.2. Without prejudice to the provisions of Clause 19.1, the Transferee Company may enter into and/or issue and/or execute deeds, writings or confirmations or enter into any tripartite agreements, confirmations or novation, to which the Transferor Company 3 will, if necessary, also be a party in order to give formal effect to the provisions of this Scheme, if so required or if considered necessary.

19.3. The Transferee Company shall, at any time after this Scheme coming into effect, in accordance with the provisions hereof, if so required under any Applicable Law or otherwise, be entitled to execute appropriate deeds of confirmation or other writings or arrangements with any party to any contract or arrangement in relation to which a Transferor Company has been a party, including any filings with the relevant Governmental Authorities, in order to give formal effect to the above provisions.

20. SAVING OF CONCLUDED TRANSACTIONS

20.1. Subject to the terms of this Scheme, the transfer and vesting of Transferor Company 3 into the Transferee Company shall not affect any transactions or proceedings or contracts or deeds already concluded by the Transferor Company 3, for and on behalf of the Transferee Company until the Effective Date, to the end and intent that the Transferee Company accepts and adopts all such acts, deeds and things done and executed by the Transferor Company 3, for and on behalf of the Transferee Company in relation thereto as acts, deeds, and things done and executed by or on behalf of the Transferee Company.

21. EMPLOYEES

21.1. Upon the Scheme coming into effect, all Transferring Employees relating to Transferor Company 3 shall be deemed to have become the employees of the Transferee Company with effect from the Appointed Date without any interruption of, or break in service, as a result of

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the transfer to the Transferee Company, and the terms and conditions of their employment with the Transferee Company shall not be less favourable than those on which they are engaged by Transferor Company 3.

21.2. The Transferee Company agrees that for the purpose of payment of any compensation, retrenchment compensation, gratuity and other terminal benefits, if any applicable or required, the past services of the Transferring Employees shall also be taken into account, and the Transferee Company shall pay the same as and when payable.

21.3. All on-going leave balances, leave encashments, deferred cash benefits and such other dues of the Transferring Employees shall stand transferred to the Transferee Company and the Transferring Employees shall be treated as in continuous employment in terms of Clause 21.1.

21.4. Upon this Scheme becoming effective, all contributions to funds and schemes in respect of provident fund (including contributions made to or deposited with the appropriate office of the EPFO maintained by the appropriate Regional Provident Fund Commissioner), employee state insurance contribution, gratuity fund, superannuation fund, staff welfare scheme or any other special schemes or benefits created or existing for the benefit of the Transferring Employees shall be made by the Transferee Company in accordance with the provisions of such schemes or funds and Applicable Law. Subject to Applicable Law, the existing Funds shall be continued on the same terms and conditions and will be transferred to the existing provident fund (including those with the appropriate office of the EPFO maintained by the appropriate Regional Provident Fund Commissioner as applicable), employee state insurance contribution, gratuity fund, superannuation fund, staff welfare scheme, etc., being maintained by or as may be created by the Transferee Company without any separate act or deed/ approval. In the event the Transferee Company does not have its own funds in respect of any of the above, the Transferee Company may, subject to necessary approvals and permissions, continue to contribute to the Funds, until such time that the Transferee Company creates its own funds and the investments and contributions pertaining to the Transferring Employees shall be transferred to the funds created by the Transferee Company.

21.5. Further to the transfer of Funds as set out in Clause 21.4, for all purposes whatsoever in relation to the administration or operation of such Funds or in relation to the obligation to make contributions to the said Funds in accordance with the provisions thereof as per the terms provided in the trust deeds, if any, all rights, duties, powers and obligations of the Transferor Company 3 shall become those of the Transferee Company and all the rights, duties and benefits of the employees of the Transferor Company 3 under such Funds shall be protected, subject to the provisions of law for the time being in force.

21.6. In relation to any other fund (including any funds set up by the government for employee benefits) created or existing for the benefit of the Transferring Employees, the Transferee Company shall stand substituted in place of Transferor Company 3, for all purposes whatsoever, including in relation to the obligation to make contributions to such funds in accordance with the provisions of the applicable schemes, fund rules, bye-laws or other governing documents, in respect of such Transferring Employees.

22. INTER-SE TRANSACTIONS

22.1. With effect from the Appointed Date, all inter-party transactions and arrangements (including investments, loans, deposits, advances, transactions, transfers or balances) entered into between the Transferor Company 3 (on one hand) and the Transferee Company (on the other hand),

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subsisting as on the Effective Date or entered into during the period between the Appointed Date and Effective Date, shall stand cancelled and set-off against each other and neither the Transferor Company 3 nor the Transferee Company shall have any obligation or liability against the other Party in relation thereto.

22.2. Any tax deducted at source by Transferor Company 3 or the Transferee Company on inter-se transactions between the Transferor Company 3 and the Transferee Company, between the Appointed Date and Effective Date shall be deemed to be advance tax paid or tax deposited by the Transferee Company and shall, in all proceedings, be dealt with accordingly in the hands of the Transferee Company (including but not limited to grant of such tax deposited as credit against total tax payable by Transferee Company while filing consolidated return of income on or after Appointed Date). The Transferee Company shall be accordingly entitled to claim refund of tax paid, if any, on these inter-se transactions, as per the Tax laws. Further, any advance tax paid, TDS/TCS credits, TDS/TCS certificates received by the Transferor Company 3 shall be deemed to be the advance tax paid by/TDS/TCS credit of the Transferee Company. Notwithstanding the foregoing, inter se transactions of supply or receipt of goods and services between the Transferor Company 3 and Transferee Company between the Appointed Date and Effective Date shall be subject to taxation under the Central Goods and Service Tax Act, 2017, as amended, in accordance with the provisions of Section 87 of the Central Goods and Service Tax Act, 2017. For the avoidance of doubt, input tax credits already availed of or utilized by the Transferor Company 3 and the Transferee Company in respect of such inter-se transactions of supply or receipt of goods and services between the Appointed Date and the Effective Date shall not be adversely impacted by the foregoing provisions of this clause.

23. CONDUCT OF BUSINESS TILL EFFECTIVE DATE

23.1. With effect from the Appointed Date up to and including the Effective Date:

23.1.1. Transferor Company 3 shall be deemed to have been carrying on its business and activities, and shall hold and stand possessed of the Amalgamating Undertaking, for and on account of and in trust for the Transferee Company;

23.1.2. all income or profits arising or accruing to the Transferor Company 3 and all costs, charges, expenses, taxes paid thereon (including but not limited to advance tax, tax deducted at source, minimum alternate tax, securities transaction tax, taxes withheld/paid in a foreign country, etc.), or losses arising or incurred by Transferor Company 3, shall, for all purposes, be treated as and deemed to be the corresponding profits or income, taxes or losses, as the case may be, of the Transferee Company and shall be available to the Transferee Company for being disposed off in any manner as it thinks fit;

23.1.3. all liabilities, debts, duties, obligations incurred by the Transferor Company 3 after the Appointed Date and prior to the Effective Date shall, subject to the terms of the Scheme, be deemed to have incurred for and on behalf of the Transferee Company and to the extent they are outstanding on the Effective Date, shall also, without any further act or deed be and be deemed to become the debts, liabilities, duties and obligations of the Transferee Company; and

23.1.4. all assets comprised in the Transferor Company 3, whether movable or immovable, tangible or intangible, real or personal, in possession or reversion, which are acquired on or after the Appointed Date till the Effective Date, shall, pursuant to the provisions

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of Sections 230 to 232 and all other applicable provisions of the Act, without any further act or deed, be and stand transferred to and vested in the Transferee Company, free from all encumbrances, with effect from the Appointed Date.

23.2. Transferor Company 3 shall carry on their business with reasonable diligence and business prudence and in the same manner as it has been hitherto conducting and shall not alter or substantially expand its business except with the written approval of the Transferee Company.

23.3. Transferee Company shall be entitled, pending the sanction of the Scheme, to apply to the Governmental Authorities concerned as are necessary under any Applicable Law for such consents, approvals and sanctions which the Transferee Company may require to carry on the businesses undertaken by Transferor Company 3 and to give effect to the Scheme.

23.4. In case the Scheme does not come into effect, the assets and liabilities of the Transferor Company 3 would be re-transferred by the Transferee Company to the Transferor Company 3 and for the interim period it would be deemed that the Transferee Company held and stood possessed of the assets and liabilities of the Transferor Company 3, for and on account of and in trust for the Transferor Company 3.

24. NIL CONSIDERATION AND CANCELLATION OF TRANSFEREE COMPANY'S SHAREHOLDING IN TRANSFEROR COMPANY 3

24.1. Since Transferor Company 3 is a wholly-owned subsidiary of the Transferee Company, no shares of the Transferee Company shall be issued pursuant to the Scheme in respect of the holdings of the Transferee Company in Transferor Company 3. Accordingly, upon the Scheme becoming effective, there shall be no change in the shareholding pattern of the Transferee Company.

24.2. Further, upon the Scheme becoming effective, all shares, securities and instruments of the Transferor Company 3 held by Transferee Company (whether recorded or not recorded in the books of Transferee Company or Transferor Company 3), shall stand cancelled and extinguished without any further act, instrument or deed and no separate sanction of the NCLT shall be required in this regard. Further, the investments in the Transferor Company 3 shall also stand cancelled.

25. ACCOUNTING TREATMENT

Notwithstanding anything else contained in the Scheme, the Transferee Company shall account for the amalgamation of the Transferor Company 3 in accordance with 'Pooling of Interest Method' of accounting as laid down in Appendix C of Indian Accounting Standard (Ind AS) 103 'Business Combinations' prescribed under section 133 of the Companies Act, 2013, read with the Companies (Indian Accounting Standards) Rules, 2015, as may be amended from time to time in the books of accounts such that:

25.1. The Transferee Company shall record all assets (including goodwill) and liabilities, if any, of the Transferor Company 3 vested in it pursuant to the Scheme, at the carrying values as appearing in the consolidated financial statements of the Transferee Company;

25.2. The identity of the reserves of the Transferor Company 3, shall be preserved and the Transferee Company shall record the reserves of the Transferor Company 3 in the same form and at the

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carrying values as appearing in the consolidated financial statements of the Transferee Company;

25.3. The value of all investments held by the Transferee Company in the Transferor Company 3 shall stand cancelled pursuant to amalgamation and there shall be no further obligation in that behalf;

25.4. Pursuant to the amalgamation of the Transferor Company 3 with the Transferee Company, the inter-company balances between the Transferor Company 3 and/or the Transferee Company, if any, appearing in the books of the Transferee Company and/or the Transferor Company 3 shall stand cancelled and there shall be no further obligation in that behalf;

25.5. The surplus, if any, arising after taking the effect of Clauses 25.1, 25.2, 25.3 and 25.4 shall be transferred to the Capital Reserve in the financial statements of the Transferee Company. The deficit, if any, arising after taking the effect of Clauses 25.1, 25.2, 25.3 and 25.4 shall be adjusted to the Retained Earnings in the financial statements of the Transferee Company;

25.6. In case of any differences in accounting policy between the Transferor Company 3 and the Transferee Company, it shall be adjusted to reserves of the Transferee Company and the accounting policies followed by the Transferee Company will prevail to ensure that the financial statements of the Transferee Company reflect the financial position on the basis of consistent accounting policy;

25.7. Comparative financial information in the financial statements of the Transferee Company shall be restated for the accounting impact of merger, as stated above, as if the merger has occurred from the beginning of the comparative period; and

25.8. Any matter not dealt with in this Clause 25 shall be dealt with in accordance with the requirements of applicable Indian Accounting Standards.

26. DISSOLUTION OF THE TRANSFEROR COMPANY 3

26.1. On the Scheme becoming effective:

26.1.1. the Transferor Company 3 shall stand dissolved without winding up or without any further deed or act of a similar nature;

26.1.2. the name of the Transferor Company 3 shall be deemed to be struck off from the records of the Registrar of Companies; and

26.1.3. the Transferee Company shall be entitled to operate all bank accounts of Transferor Company 3, and realise all monies and complete and enforce all pending contracts and transactions in the name of the Transferor Company 3 insofar as may be necessary until the transfer and vesting of rights and obligations of the Transferor Company 3 to the Transferee Company under this Scheme is formally effected by the Parties.

27. APPROVALS

27.1. The Transferee Company shall be entitled, pending the sanction of the Scheme, to apply to any Governmental Authority, if required, under Applicable Law for such consents and approvals which the Transferee Company may require to own the Amalgamating Undertaking and to carry on the business of the Transferor Company 3.

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PART-E

GENERAL TERMS AND CONDITIONS

28. DIVIDENDS

28.1. Nothing contained in this Scheme shall be construed as restricting or restraining any of the Parties from being entitled to declare and pay dividends, whether interim or final to their respective equity shareholders, whether during the pendency of the Scheme or otherwise.

28.2. The shareholders of each of the Parties shall, save as expressly provided otherwise in this Scheme, continue to enjoy their existing rights under the articles of association of the respective Parties concerned, including the right to receive dividends.

28.3. It is clarified that the above provisions in respect of declaration of dividends are enabling provisions only and shall not be deemed to confer any right on any member of any Party to demand or claim any dividends which, subject to the provisions of the said Act, shall be entirely at the discretion of the respective Boards of the Parties.

29. INCREASE AND RECLASSIFICATION OF THE AUTHORISED SHARE CAPITAL OF THE TRANSFEREE COMPANY

29.1. Upon this Scheme becoming effective for each of the Transferor Companies:

(i) the authorised share capital of the Transferee Company shall be increased by an amount equal to the authorised share capital of each Transferor Company; and

(ii) following such increase:

(a) the equity shares of the Transferee Company having face value of INR 10 shall stand reclassified into equity shares of the Transferee Company having face value of INR 2; and

(b) the non-cumulative compulsory convertible preference shares of the Transferee Company having face value of INR 10 shall stand reclassified into equity shares of the Transferee Company having face value of INR 2.

The actions set out in this Clause 29.1 shall be effected by filing the requisite forms with the Governmental Authority and no separate act, procedure, instrument or deed shall be required to be executed or process shall be required to be followed under the Act.

29.2. For this purpose, the filing fees and stamp duty already paid by each of the Transferor Companies on its respective authorized share capital shall be utilized and applied to the increased and reclassified share capital of the Transferee Company, and shall be deemed to have been so paid by the Transferee Company on such combined authorised share capital and accordingly, the Transferee Company shall not be required to pay any fees/ stamp duty on the authorised share capital so increased.

29.3. Consequently, Clause V of the memorandum of association of the Transferee Company shall without any act, instrument or deed be and stand altered, modified, and amended pursuant to Section 13 and Section 61 of the Act and other applicable provisions of the Act to reflect the increase and reclassification of the authorised share capital of the Transferee Company in the manner set out in Clause 29.1.

29.4. The amendments pursuant to this Clause 29 shall become operative on the Scheme becoming effective and the approval of the members of the Transferee Company to this Scheme shall be deemed to be their consent /approval to the increase and reclassification of the authorized share capital of the Transferee Company and also to the consequential alteration of the memorandum of association of the Transferee Company. The Transferee Company shall not be required to seek separate consent/ approval of its shareholders for such increase and reclassification of the authorized share capital and the alteration of the memorandum of association, as required under Sections 13, 61, 62 and 64 of the Act and other applicable provisions of the Act.

30. FILING OF APPLICATIONS/PETITIONS WITH THE NCLT

30.1. The Parties shall make and file all necessary applications, affidavits, petitions, etc., before the NCLT for obtaining the sanction to this Scheme of Amalgamation under Section 230-232 of the Companies Act and each of the Parties shall apply for all necessary approvals as may be required under law.

31. MODIFICATION TO THE SCHEME

31.1. The Parties (acting through their Board) may, in their full and absolute discretion, jointly and as mutually agreed in writing, modify, vary or withdraw this Scheme at any time prior to the Effective Date in any manner (including pursuant to any direction by any appropriate authority under Applicable Law), provided that any modification or variation of the Scheme by the Parties, after receipt of sanction by the NCLT, shall be made only with the prior approval of the NCLT or any other appropriate authorities as may be required under Applicable Law.

31.2. Each of the Parties agree that if, at any time, either of the NCLT or any appropriate authority directs or requires any modification of the Scheme, such modification or amendment shall not, to the extent it adversely affects the interests of any of the Parties, be binding on either Party, except where the prior written consent of the affected Party has been obtained for such modification or amendment, which consent shall not be unreasonably withheld by the Transferor Company or the Transferee Company (as may be applicable).

31.3. In the event, post approval of the Scheme by NCLT, there is any confusion in interpreting any clause of this Scheme, or otherwise, the Boards of the Parties shall have complete power to mutually make the most sensible interpretation so as to render the Scheme operational.

31.4. For the purposes of giving effect to this Scheme or to any modification hereof, the Boards of the relevant Parties, acting jointly or individually, as may be relevant, give such directions including directions for settling any question or difficulty that may arise and such directions shall be binding on the Parties as if the same were specifically incorporated in this Scheme.

32. CONDITIONS PRECEDENT

32.1. This Scheme is and shall be conditional upon and subject to the satisfaction (or waiver in such manner as may be mutually agreed between the Parties) of each of the following conditions ("**Conditions Precedent**"):

(i) Receipt of relevant approvals/no objection certificates for this Scheme as may be required from the relevant the regulatory and Governmental Authorities, if any;

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(ii) Approval by the requisite majorities of members and creditors (where applicable) of the Transferor Companies and the Transferee Company, as required under the Act, subject to any dispensation that may be granted by the NCLT;

(iii) Sanction of the Scheme by the NCLT or any other competent authority or any other appropriate authority under the applicable provisions of the Act;

(iv) Certified copies of the order of the NCLT or any other competent authority or any other appropriate authority under the applicable provisions of the Act, as may be applicable, being filed with the Registrar of Companies by the Transferor Companies and the Transferee Company; and

(v) compliance with such other conditions as may be imposed by NCLT.

32.2. In addition to the satisfaction of the conditions precedents set out in Clause 32.1 above, Part-D of the Scheme is also conditional upon and subject to receipt of necessary approvals from the IRDAI, as applicable.

33. FUND RAISING BY ISSUE OF SHARES/ OTHER INSTRUMENTS

33.1. For the avoidance of doubt, it is hereby clarified that during the period between (a) the date on which the respective Boards of the Transferor Companies and Transferee Company approve the Scheme, and (b) the Effective Date (both days inclusive), nothing in this Scheme shall prevent the Transferor Companies and Transferee Company from raising funds by an issue of new equity shares, or preference shares or any convertible/ nonconvertible instruments or new stock options or in any other manner, in furtherance of regulatory requirements prescribed by Applicable Laws, provided that pursuant to such aforesaid issuance(s) by the Transferor Companies, each of the Transferor Companies continue to remain a wholly owned subsidiary of the Transferee Company.

34. VALIDITY OF EXISTING RESOLUTIONS

34.1. Upon this Scheme becoming effective, the resolutions passed by each of the Transferor Companies, as are considered necessary by the Board of the Transferee Company and which are valid and subsisting on the date of this Scheme becoming effective, shall continue to be valid and subsisting and be considered as resolutions of the Transferee Company and if any such resolutions have any monetary limits approved under the provisions of the Act, or any other applicable statutory provisions, then said limits as are considered necessary by the Board of the Transferee Company shall be added to the limits, if any, under like resolutions passed by the Transferee Company and shall constitute the aggregate of the said limits in the Transferee Company.

35. WITHDRAWAL OF THIS SCHEME

35.1. The Parties shall be at liberty, at any time prior to the Effective Date, to withdraw this Scheme in its entirety or to withdraw any part thereof, as may be mutually agreed by the Boards of the Parties. It is clarified that in the event of partial withdrawal, the remaining provisions and parts of the Scheme shall continue to be valid and operative, to the extent not affected thereby. It is hereby clarified that notwithstanding anything to the contrary contained in this Scheme, neither the Transferor Companies nor the Transferee Company shall be entitled to withdraw the Scheme unilaterally without the prior written consent of the other Party.

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35.2. In the event of withdrawal of the Scheme under Clause 35.1 above, no rights and liabilities whatsoever shall accrue to or be incurred *inter se* the Parties or their respective shareholders or creditors or employees or any other Person.

36. SEVERABILITY

36.1. This Scheme is divided into separate parts, each of which is intended to be operable independently. If any Part and/ or provision of this Scheme is found to be unworkable for any reason whatsoever or is withdrawn, the same shall not, subject to the decision of the Parties through their respective Boards, affect the validity or implementation of the other Parts and/ or provisions of this Scheme.

37. PROPERTY IN TRUST

37.1. Notwithstanding anything contained in this Scheme and to the extent permissible under Applicable Law, on or after the Effective Date, until any property, asset, license, approval, permission, contract, agreement and rights and benefits arising therefrom pertaining to the Transferor Companies are transferred, vested, recorded, effected and/or perfected in the records of any Governmental Authority, regulatory bodies, any third party, or otherwise, in favour of the Transferee Company, the Transferor Companies shall, in respect of the property, assets, licenses, approvals, permissions, contracts or agreements pertaining to each of them, be deemed to be authorised to exercise and enjoy the same and the rights and benefits arising therefrom, as if each such Transferor Company were the owner of such property or assets or the original party thereto. It is clarified that, until entries are made in the records of the relevant Governmental Authorities and until such time as may be mutually agreed between the Transferor Companies and the Transferee Company, each of the Transferor Companies shall, in respect of the property, assets, licenses, permissions, approvals, contracts or agreements pertaining to it, continue to hold the same and the rights and benefits arising therefrom in trust for and on behalf of the Transferee Company.

38. COSTS, CHARGES

38.1. All costs, charges, levies and expenses (including stamp duty, registration charges etc.) in relation to or in connection with or incidental with this Scheme and incidental to the completion of transactions contemplated under this Scheme, shall be borne and paid by Transferee Company.

39. RESIDUAL PROVISIONS

39.1. The consent of the shareholders and creditors of each of the Parties to the Scheme in accordance with the Act, as applicable, shall be deemed to be sufficient for purposes of effecting all the actions set out in this Scheme and no additional actions of the Parties shall be separately required.

39.2. The Transferor Company and Transferee Company shall make necessary applications / file relevant forms to any Governmental Authority as may be necessary to effectuate the actions contemplated in this Scheme.

39.3. It is hereby clarified that the Board of the Transferee Company shall be deemed to have been authorised to do all such acts, deeds and things as may be required to give effect to and implement the provisions of this Scheme, including acting for and on behalf of the Board of

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each of the Transferor Companies, in respect of the assets and matters pertaining to the relevant Transferor Company, including executing any pleadings, applications, instruments, forms, policies or schemes, filing necessary particulars relating to mutation and/or substitution of ownership, title or interest in the immovable properties of such Transferor Company, and/or modification of charges created by or pertaining to such Transferor Company, and fulfilling all statutory obligations, approvals and compliances in relation thereto.

40. POWER TO REMOVE DIFFICULTIES

40.1. The authorised signatories of the Parties, either by themselves or through a committee appointed by them in this regard, may as mutually agreed in writing, including without limitation through any definitive agreement(s) that may be entered into by and between the relevant Parties in relation to the Scheme:

40.1.1. give such directions as they may consider necessary to settle any question or difficulty arising under this Scheme, or in regard to and of the meaning or interpretation of this Scheme or implementation thereof or in any matter whatsoever connected therewith, or to review the position relating to the satisfaction of various conditions of this Scheme and if necessary, to waive any of those;

40.1.2. do all acts, deeds and things as may be necessary, desirable or expedient for carrying the Scheme into effect; and

40.1.3. make any inclusions or exclusions (including without limitation in relation to assets or liabilities) to the Transferor Company.

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